

Court No. - 32

Case :- WRIT - C No. - 41957 of 2019

Petitioner :- M/S Balaji Oil Udyog

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Jeetendra Kumar
Sharma

Counsel for Respondent :-

C.S.C., Baleshwar Chaturvedi

Hon'ble Shashi Kant Gupta, J.

Hon'ble Shamim Ahmed, J.

This writ petition has been filed, inter alia, for the following relief:

"i) Issue a writ, order or direction in the nature of certiorari to quashing the impugned notice dated 23.8.2019 issued by the respondent no. 3 (Annexure-4)."

Heard learned counsel for the petitioner, Sri Baleshwar Chaturvedi, learned counsel for the Electricity Department and perused the record.

The petitioner is raising dispute with regard to the correctness of the bill raised against him.

It is open to the petitioner to take recourse to the remedy provided to him under Clause 6.5 of the U.P. Electricity Supply code, 2005. We are not inclined to entertain this writ petition for reasons that there is availability of statutory remedy.

In case, the petitioner approaches the appropriate authority along with a certified copy of this order enclosing therewith a copy

of the writ petition and its annexures for redressal of his grievance within two weeks from today, his application may be considered and decided by the said authority in accordance with law within four weeks from the date of receipt of a certified copy of this order by a speaking order after giving opportunity of hearing to the petitioner.

In case, the petitioner deposits Rs. 1,00,000/- (rupees one lac) with the Electricity Department concerned towards his outstanding dues within a period of ten days from today, the electric connection of the petitioner shall be restored by the Electricity Department forthwith.

For a period of seven weeks, no coercive action shall be taken against the petitioner.

With the aforesaid observation, the writ petition is finally disposed of.

Order Date :- 18.12.2019

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